

AOC-497 Rev. 7-20 Page 1 of 2 Commonwealth of Kentucky Court of Justice www.kycourts.gov KRS 431.076	 EXPUNGEMENT ORDER (FOR ACQUITTAL, DISMISSAL, OR FAILURE TO INDICT)	Case No. _____ Court _____ County _____ Division _____
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COMMONWEALTH OF KENTUCKY

VS.

NAME

ADDRESS

PLAINTIFF

DEFENDANT

() PHONE NUMBER

Jail ID Number (optional)

Defendant's Birthdate: Defendant's SSN: Violation/Arrest Date:

FINDINGS OF FACT

The Court, having reviewed Defendant's **Petition to Expunge** and being sufficiently advised, **FINDS:**

1. (Check all that apply)
- ☐ At least sixty (60) days before the filing of this Petition, Defendant was **acquitted** of the charge(s) listed below. Said acquittal was not expunged pursuant to KRS 431.076(1)(a);
 - ☐ At least sixty (60) days before the filing of this Petition, the charge(s) listed below was/were **dismissed with prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense and was not expunged pursuant to KRS 431.076(1)(a);
 - ☐ At least three (3) years prior to the filing of this Petition, the felony charge(s) listed below was/were **dismissed without prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense;
 - ☐ At least one (1) year prior to the filing of this Petition, the misdemeanor charge(s) listed below was/were **dismissed without prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense; AND
 - ☐ The charge(s) listed below include felony charge(s) originally filed in District Court that did not result in an indictment by the grand jury or in an information filed by the Commonwealth's attorney. Six (6) months have elapsed since the date of the District Court decision to hold the matter to the grand jury.

CHARGE:

CHARGE:

CHARGE:

CHARGE:

2. ☐ Other:
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1. (Check all that apply)
- ☐ At least sixty (60) days before the filing of this Petition, Defendant was **acquitted** of the charge(s) listed below. Said acquittal was not expunged pursuant to KRS 431.076(1)(a);
 - ☐ At least sixty (60) days before the filing of this Petition, the charge(s) listed below was/were **dismissed with prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense and was not expunged pursuant to KRS 431.076(1)(a);
 - ☐ At least three (3) years prior to the filing of this Petition, the felony charge(s) listed below was/were **dismissed without prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense;
 - ☐ At least one (1) year prior to the filing of this Petition, the misdemeanor charge(s) listed below was/were **dismissed without prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense; AND
 - ☐ The charge(s) listed below include felony charge(s) originally filed in District Court that did not result in an indictment by the grand jury or in an information filed by the Commonwealth's attorney. Six (6) months have elapsed since the date of the District Court decision to hold the matter to the grand jury.

CHARGE:

CHARGE:

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2. ☐ Other:
-
-
-
-
-

THEREFORE, IT IS HEREBY ORDERED:

1. ☐ The Petition is **DENIED**. (Doc Code: OEXD)
2. ☐ The Petition is **GRANTED**. The Court further **ORDERS**: (Doc Code: OEXG)

a. Pursuant to KRS 431.076(3)(b), any felony charge(s) originating in District Court not resulting in an indictment or an information is/are hereby **DISMISSED**.

b. The above-listed **charge(s) is/are EXPUNGED from the court records**. Upon entry of this order, the proceedings shall be deemed never to have occurred; the Court shall reply to any inquiry that no record exists; and Defendant shall not have to disclose the fact of the record or any matter relating to it on an application for employment, credit, or other purpose.

c. **With the exception of any records in the custody of the Department for Community Based Services**, the Kentucky State Police and other following agencies with custody of records relating to the arrest, charge or other matters arising out of the arrest or charge, shall expunge the record, including but not limited to; arrest records, fingerprints, photographs, index references, or other documentary or electronic data, **and shall certify to the Court on this form** within sixty (60) days of the entry of this order that the required expunging action has been completed:

Date, 2

Judge

AGENCY CERTIFICATION

an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: 2. Agency Records Custodian:

Distribution: Original - Court File

Copies: Defendant/Attorney; Kentucky State Police, 1266 Louisville Road, Frankfort, KY 40601; Named Agencies

Circuit Clerk: Refer to Clerk’s Manual for instructions on filing this certification.

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an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

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